

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Robert Tanner	Team: Team # 5	CCRB Case #: 200917126	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 10/31/2009 7:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/30/2011	Precinct: 70
Date/Time CV Reported Sun, 11/01/2009 12:00 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 11/05/2009 1:05 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Szczecinski	01952	940784	070 PCT
2. Officers			
3. An officer			
4. POM Ronald Archer	12468	905707	070 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM James Gale	11114	943265	070 PCT
2. POM Marco Chavez	22689	938215	070 PCT
3. SGT Guang Zeng	05213	933507	070 PCT
4. POM Michael Rios	15927	947677	070 PCT
5. POM Dominic Cappiello	13096	942764	109 PCT
6. POM Lukasz Solis	14287	943832	101 PCT
7. POM Leonard Clarke	27183	940013	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Szczecinski	Force: PO Michael Szczecinski used physical force against § 87(2)(b)	A . Unsubstantiated
B . Officers	Force: Officers used physical force against § 87(2)(b) and § 87(2)(b)	B . Officer(s) Unidentified
C . An officer	Force: An officer used a chokehold against § 87(2)(b)	C . Officer(s) Unidentified
D . An officer	Force: An officer used pepper spray against § 87(2)(b)	D . Officer(s) Unidentified
E . An officer	Force: An officer used physical force against § 87(2)(b) and § 87(2)(b)	E . Officer(s) Unidentified
F . POM Ronald Archer	Force: PO Ronald Archer used physical force against § 87(2)(b)	F . Alleged Victim Uncooperative

Case Summary

§ 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) filed complaints with IAB via telephone on November 1, 2010. § 87(2)(b), § 87(2)(b), and § 87(2)(b) did not witness the incident. § 87(2)(b) witnessed a portion of the incident under investigation. These complaints were referred to the CCRB on November 5, 2010. On October 31, 2009, at approximately 7:00 p.m. PO Marco Chavez and PO James Gale attempted to stop § 87(2)(b). After arresting § 87(2)(b) § 87(2)(b), the officers called for additional units to provide crowd control. The following allegations resulted:

- **Allegation A – Force:** PO Michael Szczecinski used physical force against § 87(2)(b) § 87(2)(g).
- **Allegation B – Force:** Officers used physical force against § 87(2)(b), § 87(2)(b), and § 87(2)(b) § 87(2)(g).
- **Allegation C – Force:** An officer used a chokehold against § 87(2)(b) § 87(2)(g).
- **Allegation D – Force:** An officer used pepper spray against § 87(2)(b) § 87(2)(g).
- **Allegation E – Force:** An officer used physical force against § 87(2)(b) and § 87(2)(b) § 87(2)(g).
- **Allegation F – Force:** PO Ronald Archer used physical force against § 87(2)(b) § 87(2)(b), § 87(2)(g).

Results of Investigation

Civilian Statements

Complainant: § 87(2)(b)

- § 87(2)(b) a § 87(2)(b) black male, is § 87(2)(b) and weighs § 87(2)(b). He has black hair and brown eyes. § 87(2)(b)

Arrest Photograph (encl. 4A)

§ 87(2)(b)'s arrest photograph shows him with a swollen left eye.

Statements to Medical Personnel (encl. 22D)

§ 87(2)(b) was treated at § 87(2)(b) on § 87(2)(b). He was under arrest and in NYPD custody. § 87(2)(b) complained that he had been repeatedly punched in the face by several officers and pepper sprayed. He complained of swelling and an abrasion to his left eye.

CCRB Testimony

§ 87(2)(b) provided a telephone statement on November 9, 2009 (encl. 4B), and was interviewed at the CCRB on November 27, 2009 (encl. 4C-G). On October 31, 2010, § 87(2)(b) and his friend § 87(2)(b) arrived at § 87(2)(b) in Brooklyn, the home of their friend § 87(2)(b) in order to pick up some video games. They noticed several people outside on the sidewalk, including § 87(2)(b), § 87(2)(b), § 87(2)(b), a female he did not know, a male he did not know, and four young children in Halloween costumes. They continued upstairs to their friend's apartment. In the apartment were § 87(2)(b) § 87(2)(b) § 87(2)(b)'s brother, § 87(2)(b) his uncle, and § 87(2)(b) § 87(2)(b)'s mother.

After a while, § 87(2)(b) and § 87(2)(b) left and went downstairs. The costumed children were gone, but § 87(2)(b) and his friends remained. § 87(2)(b) noticed a marked police car arrive and saw two officers, a uniformed Hispanic male and a uniformed white male, get out. They have been identified via investigation as PO Marco Chavez and PO James Gale. They walked over to § 87(2)(b) and put him up against a storefront gate in an apparent attempt to arrest him.

§ 87(2)(b) exited the building and asked one of the officers what was happening. He told § 87(2)(b) to stop struggling. § 87(2)(b) returned to the building and ran back up to the apartment. He informed § 87(2)(b) that § 87(2)(b) was being arrested and that he should come down. § 87(2)(b) then returned to the street. He was approached by a plainclothes officer, an unidentified 6'2" black male in plainclothes. He asked what was happening and indicated that § 87(2)(b) was his friend. The unidentified black male officer ordered him back in the house. When § 87(2)(b) realized that the man was an officer, he walked backwards into the house and began backing up the stairs.

Without provocation, the unidentified black male officer rushed into the house and up the stairs and grabbed § 87(2)(b) § 87(2)(b)'s chest. The officer pulled him down the stairs. § 87(2)(b) remained in a standing position as he was being pulled. When he reached the bottom of the stairs, another officer, a 6'0", blond, white male officer wearing a uniform with a white shirt reached over the shoulder of the unidentified black male officer and hit § 87(2)(b) in the left eye. Then his head was held down and several officers he could not see punched § 87(2)(b) in the head and upper chest multiple times.

After punching him, the officers dragged him out of the building and put him face-down on the sidewalk. At this time § 87(2)(b) noticed a black male appearing to record the incident on his phone. This man has been identified via investigation as § 87(2)(b) § 87(2)(b). § 87(2)(b) saw the officers take the man's phone and take him away. § 87(2)(b) also observed § 87(2)(b) § 87(2)(b)'s mother in front of the store. At least six officers kicked § 87(2)(b) in the ribs approximately ten times and he felt one press a knee on his back. The officer with the knee on his back, which he recognized as the unidentified black male officer in plainclothes, reached down, grabbed his neck, turned his head to the side and stated, "He's resisting arrest." § 87(2)(b) felt his breathing was restricted at this point for approximately five seconds as the hands were on his neck. At that point the 6'2" white male officer wearing a uniform with a white shirt immediately sprayed pepper spray into his right eye. § 87(2)(b) was then handcuffed and placed in a police van. In the van he noticed § 87(2)(b) and the other girl he had earlier observed in front of the house. § 87(2)(b) was also in the van.

§ 87(2)(b) had no recollection of biting any officers. His right front top tooth was slightly chipped in the incident, but he could not recall how this happened.

A photographic identification procedure was conducted with § 87(2)(b) at the CCRB on October 1, 2010 (encl. 4H-R). § 87(2)(b) was shown two photographic arrays and a series of 6 single photographs. The first array consisted of 6 photographs of white male officers wearing

uniforms with white shirts. A potential subject officer, Cpt. Venice, was positioned as photograph #5. The other photographs were of filler officers. § 87(2)(b) stated that he believed that Cpt. Venice was one of the uniformed officers wearing dark colored uniforms that entered the building and punched him. § 87(2)(b) did not recognize any of the filler officers.

The second array consisted of 6 photographs of white male officers wearing uniforms with white shirts. A potential subject officer, Lt. Ferber, was photograph #3. The other photographs were of filler officers. § 87(2)(b) did not recognize Lt. Ferber or any of the filler officers.

§ 87(2)(b) was then shown a series of 6 single photographs of potential black male subject officers. The photographs were shown in the following order: PO Valery Paulblanc, PO Albert Lloyd, PO Sheldon Lessey, PO William Fields, PO Leonard Clarke, and PO Robert Clark. § 87(2)(b) recognized PO Leonard Clarke as the black male officer in plainclothes who was wearing a bubble vest during the incident. § 87(2)(b) did not recognize any of the other officers.

Victim: § 87(2)(b)

- § 87(2)(b) a § 87(2)(b) white male, is § 87(2)(b) and weighs § 87(2)(b). He has brown hair and blue eyes. § 87(2)(b)

Statements to Medical Personnel (encl. 22K)

§ 87(2)(b) was treated at § 87(2)(b) on § 87(2)(b). He complained, "I got beat up by cops."

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on November 27, 2009 (encl. 5A-E) § 87(2)(a)

§ 87(2)(b) claimed that he and § 87(2)(b) went to the home of § 87(2)(b) with § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and one or two other children whose names § 87(2)(b) did not know.

When § 87(2)(b) was handcuffed by PO Gale and PO Chavez, § 87(2)(b) protested, "You can't do that!" § 87(2)(b)'s mother, § 87(2)(b) was present and she told the officers to calm down and relax. PO Gale requested backup, § 87(2)(b) was brought him to the ground. Additional officers arrived within a minute or two. At this point, one of § 87(2)(b) unidentified cousins came running out of the house, pushing everyone out of the way.

§ 87(2)(b) pulled § 87(2)(b) and § 87(2)(b) into the house. About four officers, the unidentified black male in plainclothes, and three white or Hispanic male officers in uniform followed them. § 87(2)(b) and § 87(2)(b) got to the top of the staircase. The officers began to pull § 87(2)(b) and § 87(2)(b) out, grabbing them by their shirts. The unidentified black male in plainclothes punched both § 87(2)(b) and § 87(2)(b). During the course of the struggle, the unidentified black male officer punched § 87(2)(b) on the right side and back of the head. § 87(2)(b) sustained two knots in those areas. He fell on the staircase, and attempted to cover himself. One of the officers struck § 87(2)(b) in the shin with a fist or object he could not see. § 87(2)(b) was also struck in the arm, but he does not know by whom.

§ 87(2)(b) was pushed against the wall. PO Chavez dragged § 87(2)(b) out of the building and onto the sidewalk. § 87(2)(b) immediately fell face-forward onto the ground, but the officers flipped him onto his back, pulling his arms behind his back. § 87(2)(b) remained on the staircase, trying to cover his face. § 87(2)(b) reached the top of the stairs and entered his apartment.

The officers pulled § 87(2)(b) up and he was brought out in handcuffs. As he was removed from the building, § 87(2)(b) saw a number of officers, between 5 and 8, holding § 87(2)(b) on the ground and kicking him. § 87(2)(b) did not recall whether the officers were saying anything. § 87(2)(b) attempted to protect his face with his hands. At no time did § 87(2)(b) attempt to strike a police officer. § 87(2)(b) also observed an officer he could not describe spraying § 87(2)(b) with mace.

§ 87(2)(b) noted that a large crowd had gathered, about thirty or forty people, to observe the scene. Officers were telling the members of the public who were standing close to back away. He also saw the unidentified black male officer in plainclothes push § 87(2)(b) against a fence. § 87(2)(b) received a summons § 87(2)(b) from the front desk at the stationhouse.

After his release, § 87(2)(b) went to § 87(2)(b) with § 87(2)(b), § 87(2)(b)'s mother. § 87(2)(b) was riding handcuffed in the ambulance ahead of them. § 87(2)(b) sustained a knot to the right side of his head, a knot to the back of his head, and a bruise to his shin. The skin at the shin broke, and there was a little bit of bleeding. He was prescribed painkillers.

A photographic identification procedure was conducted with § 87(2)(b) at the CCRB on October 1, 2010 (encl. 5F-P). § 87(2)(b) was shown two photographic arrays and a series of 6 single photographs. The first array consisted of 6 photographs of white male officers wearing uniforms with white shirts. A potential subject officer, Cpt. Venice, was photograph #2. The other photographs were of filler officers. § 87(2)(b) did not recognize any of the officers.

The second array consisted of 6 photographs of white male officers wearing uniforms with white shirts. A potential subject officer, Lt. Ferber, was photograph #4. The other photographs were of filler officers. § 87(2)(b) did not recognize any of the officers.

§ 87(2)(b) was then shown a series of 6 single photographs of potential black male subject officers. The photographs were shown in the following order: PO Robert Clark, PO Leonard Clarke, PO William Fields, PO Sheldon Lessey, PO Albert Lloyd, and PO Valery Paulblanc. § 87(2)(b) did not recognize any of the officers.

Witness: § 87(2)(b)

- § 87(2)(b) an § 87(2)(b) Hispanic male, is § 87(2)(b) and weighs § 87(2)(b). He has black hair and brown eyes. § 87(2)(b)

CCRB Testimony

§ 87(2)(b) provided a telephone statement on December 3, 2009 (encl. 6A), and was interviewed at the CCRB on December 8, 2010 (encl. 6B-G) § 87(2)(g)

§ 87(2)(b) claimed that he and § 87(2)(b) were playing video games at § 87(2)(b) home when § 87(2)(b) arrived. Shortly after § 87(2)(b) left, he returned to the home and explained that something had happened to § 87(2)(b) nephew, § 87(2)(b). When § 87(2)(b) arrived on the street outside his home, he observed three officers. One was restraining § 87(2)(b) one was restraining § 87(2)(b) and one was speaking on a radio.

§ 87(2)(b) told the officers that § 87(2)(b) was his nephew. Meanwhile, more officers had arrived. Some arrived in a marked police Cruiser, whereas others arrived in a marked van. A crowd of approximately 20 individuals began to form a circle on the sidewalk around the incident. They appeared to be curious bystanders. The second wave of officers who had arrived

appeared to be in charge of crowd control and were pushing bystanders back. One of these 'second wave' officers, obstructed § 87(2)(b) view of his nephew.

§ 87(2)(b) began yelling towards the officers, telling them that they were behaving wrongly. § 87(2)(b) for the second time, asked what was going on. In response, an unidentified black male officer in plainclothes told them to go back upstairs. § 87(2)(b) yelled that he wanted to know what was happening but then quickly calmed down. Ultimately, § 87(2)(b), § 87(2)(b), and § 87(2)(b) all decided to go back into the building.

§ 87(2)(b) led the way inside the building, with his friends following. He turned around and was suddenly pushed on the chest by the plain clothes officer and fell onto the steps. § 87(2)(b) was also pushed against the steps, while § 87(2)(b) was grabbed and held against the wall closer to § 87(2)(b). More uniformed officers entered the landing, and began hitting § 87(2)(b) and his friends.

§ 87(2)(b) began screaming. The unidentified black male officer in plain clothes officer, standing 3-4 stairs higher than the boys, was holding down § 87(2)(b) and § 87(2)(b) while other officers were punching them. § 87(2)(b) got punched on the top of his head twice, though he is not sure who hit him. While covering himself from the blows, § 87(2)(b) was hit on the arms. While lying with his back on the stairs, § 87(2)(b) was also being struck by four officers with punches and kicks. § 87(2)(b) was trying to see what happened to § 87(2)(b) but his view was blocked.

After a while, § 87(2)(b) was able to gather himself and sit on the stairs properly. The boys were then told that they were going to be arrested. § 87(2)(b) and § 87(2)(b) complied, leaning forward and placing their hands behind their backs. § 87(2)(b)'s leg was then grabbed and he was dragged by one of the uniformed officers with his back against the floor. He was taken outside, lifted up, put up against the cop car, and handcuffed. Meanwhile an unidentified white or Hispanic male officer in a uniform with a white shirt and another unidentified officer took § 87(2)(b) outside, and then dragged him by his leg, with his chest scraping the ground. § 87(2)(b) was picked up, and put against a cop car and handcuffed.

Meanwhile, § 87(2)(b) was pushed on the chest by the unidentified black male officer in plainclothes and told that, 'If you know what's good for you, you would go back upstairs. § 87(2)(b) went into his apartment and dialed 911. He was transferred to Internal Affairs with which he left a message.

§ 87(2)(b) was called 5 times and sent 2 letters between September 22, 2010, and October 27, 2010 in order to schedule a photographic identification procedure. As of the conclusion of the investigation, he has not contacted the CCRB about scheduling an appointment to participate in a photographic identification procedure.

Witness: § 87(2)(b)

- § 87(2)(b) a § 87(2)(b) *Hispanic female, is § 87(2)(b) and weighs § 87(2)(b). She has brown hair and brown eyes.* § 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on January 5, 2010 (encl. 7A-F). § 87(2)(g)

Once § 87(2)(b) and § 87(2)(b) were arrested, additional officers arrived at the location, and they began to clear the crowd. They told the children to go home. § 87(2)(b) did not

recall how many additional officers appeared, but there were at least 5. Most were in uniform, except for an unidentified black male officer in plainclothes.

§ 87(2)(b) and her companions started to leave, heading away from § 87(2)(b). However, the officers were also heading in the same direction, as they were herding the crowd away. § 87(2)(b) approached one officer and asked him what was going on. § 87(2)(b) was unable to provide a description of the officer. The officer § 87(2)(b) approached was busy clearing the crowd. He pushed § 87(2)(b) and grabbed her by her arm. She yelled at him to let her go and she demanded he let go of her.

§ 87(2)(b) attempted to approach § 87(2)(b) in order to grab her so they could leave. But before § 87(2)(b) could reach § 87(2)(b) another officer, the unidentified black male officer in plainclothes, pushed § 87(2)(b)'s shoulders from the front. § 87(2)(b) moved back, and then the unidentified black male officer in plainclothes pushed her again, harder. Now § 87(2)(b) fell to the floor, landing on her right elbow, which sustained scratches and bruises. The unidentified black male officer in plainclothes was yelling, but § 87(2)(b) did not remember what he said.

When § 87(2)(b) got up, she looked around for § 87(2)(b). But another officer, an unidentified white male officer, told her to get out of there. He swung his hand at § 87(2)(b)'s face. She moved her head, so the hand merely grazed her left cheek and chin.

The unidentified uniformed white male officer and an unidentified black female officer pushed § 87(2)(b) against a storefront gate and handcuffed her. The officers placed § 87(2)(b) in a van.

On October 27, 2010, § 87(2)(b)'s father, speaking on her behalf, informed the undersigned that she did not wish to participate with the investigation any longer and would not be willing to participate in a photographic identification procedure.

Witness: § 87(2)(b)

- § 87(2)(b) a § 87(2)(b) Hispanic female, is § 87(2)(b) and weighs § 87(2)(b). She has brown hair and brown eyes. § 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on January 11, 2010 (encl. 8A-G). In addition to providing a statement, she read into the record an account of the incident she wrote on her phone. § 87(2)(g)

§ 87(2)(b) did not mention witnessing the arrest of § 87(2)(b). While handcuffing § 87(2)(b), PO Chavez and PO Gale told the group of youths to move back. The children retreated about the distance of one store, but they did not leave. They did not exchange any words with PO Chavez and PO Gale at this time. While § 87(2)(b) and § 87(2)(b) were standing against the storefront in handcuffs, backup arrived. § 87(2)(b) believes that at least 7 police vehicles responded, though not all at once. At least ten officers stepped out. All of the officers were in uniform, except for an unidentified black male officer in plainclothes. The responding officers spoke with PO Chavez and PO Gale, and then turned to the group and asked them to back up and go home.

§ 87(2)(b) and § 87(2)(b) ran briefly back inside and asked § 87(2)(b)'s two cousins, § 87(2)(b) and § 87(2)(b), § 87(2)(b) to come down. They all returned together. § 87(2)(b) yelled at the officers to get off of his cousin. Responding officers pushed everybody back. The youths were backing up a few feet further, a little more than a store's length

away from the officers. Everyone in the crowd called out to the officers and asked what happened.

§ 87(2)(b) insisted to the officers that § 87(2)(b) had not done anything. The unidentified black male officer in plainclothes ordered them to get back two or three times. He then pushed § 87(2)(b) with both hands, touching her on the arms. § 87(2)(b) fell, landing on her back. § 87(2)(b) sat up and protested. The officer reached for the collar of her shirt and tugged, but he grabbed a handful of her hair. § 87(2)(b) screamed.

The officer kept pulling her by the hair and by the left arm. The unidentified black male officer in plainclothes took § 87(2)(b)'s arm and brought it behind her back, turned her around, and pushed her hard against the storefront gate where § 87(2)(b) had been arrested. Then he handcuffed her.

While she was being brought to the gate, § 87(2)(b) saw inside the building in front of which § 87(2)(b) was arrested. § 87(2)(b) and § 87(2)(b) were trying to climb the stairs to get to § 87(2)(b)'s apartment, but two unidentified white male officers in uniform were following them. § 87(2)(b) saw one struggling with § 87(2)(b) at the middle of the staircase. § 87(2)(b) was standing and facing the wall. About 2 steps higher, § 87(2)(b) saw the other officer struggling with § 87(2)(b) who was also standing and facing the wall.

§ 87(2)(b) also saw § 87(2)(b) standing to her right. Another officer, an unidentified 5'6" white male officer, used both hands to push § 87(2)(b) who fell back and hit her head on the ground hard. When § 87(2)(b) got up, she was very angry. The officer picked her up and handcuffed her. Officers brought § 87(2)(b) towards the van. § 87(2)(b) later told § 87(2)(b) that she had been punched before being pushed, but § 87(2)(b) did not witness this.

Then an unidentified black female officer in uniform came to the gate and placed a second pair of handcuffs on § 87(2)(b). Only then did the unidentified black male officer let go § 87(2)(b)'s hair. Then she was pulled away and placed by the van. § 87(2)(b) could hear doors opening inside the building. § 87(2)(b) noted that the gate against which she was placed was directly next to the door of § 87(2)(b)'s building. Now § 87(2)(b) saw an officer pulling § 87(2)(b) out of the house by the arms. He was dragging him towards the van, which was parked directly in front of the store. § 87(2)(b) did not see any other force used against § 87(2)(b).

Next, § 87(2)(b) observed § 87(2)(b) lying on his back on the sidewalk right in front of the front door of the home. 4 or 5 officers § 87(2)(b) could not describe were standing around him, punching him, kicking him, and stepping on him. One officer was wielding a black club. § 87(2)(b) is not certain which officers were in this group, but she believes they were all white and in uniform. § 87(2)(b) had his hands in front of his face, trying to cover himself, and screaming. § 87(2)(b) observed the officers striking § 87(2)(b) in the face and neck. She is unable to estimate how many times he was struck. She did not witness § 87(2)(b) being choked, although he later told her that he had been. The officers handcuffed § 87(2)(b) and took him to the van. At this point, § 87(2)(b) saw § 87(2)(b) and § 87(2)(b) departing. They left separately. § 87(2)(b) was standing to the side. The unidentified black female officer placed § 87(2)(b) inside a van.

A photographic identification procedure was conducted with § 87(2)(b) at the CCRB on November 23, 2010 (encl. 8H-N). § 87(2)(b) was shown 6 single photographs numbered 13-18. The photographs were all of potential subject officers. They were, PO Valery Paulblanc, PO Albert Lloyd, PO Sheldon Lessey, PO Leonard Clarke, PO Robert Clark, PO William Field, respectively. § 87(2)(b) did not recognize any of the officers. After looking at all of the photographs, one at a time, from photo 13 to photo 18, § 87(2)(b) asked to view photo 13, of PO Paulblanc. She again stated that she did not recognize him.

Witness: § 87(2)(b)

- § 87(2)(b) a § 87(2)(b) black male, is § 87(2)(b) and weighs § 87(2)(b). He has black hair and brown eyes. § 87(2)(b)

CCRB Testimony

§ 87(2)(b) provided a telephone statement on January 4, 2010 (encl. 9A), and was interviewed at the CCRB on January 28, 2010 (encl. 9B-F). On October 31, 2010, at approximately 7:00 p.m., § 87(2)(b) was walking with a friend, § 87(2)(b) on his way to pick up his daughter from his sister's residence. In his telephone statement he stated that he was with his girlfriend and daughter and made no mention of § 87(2)(b). At the intersection with Ditmas Avenue and § 87(2)(b) he noticed erratically parked police vehicles and a large group of onlookers gathered in front of a building. He saw and heard two Hispanic teenage girls yelling at officers and he could also see a teenager on the ground. He and § 87(2)(b) approached and he saw a black teenage male being removed from the building of § 87(2)(b) by police officers. He has been identified via investigation as § 87(2)(b). § 87(2)(b) saw two female Hispanic teens, identified via investigation as § 87(2)(b) and § 87(2)(b) positioned to his right, standing in front of the crowd. The girls were acting unresponsive to an unidentified black male officer's request to stay back. Because they did not respond to the commands, they were pushed to the side.

§ 87(2)(b) also saw one teenaged black male face down on the sidewalk. He was not sure whether this individual was the same person he observed being carried from the building, but the investigation has determined that it was § 87(2)(b). Ten officers surrounded him and pinned him to the ground with their hands and knees. It was not clear whether he was handcuffed. An unidentified heavysset, 5'4", uniformed, white male officer, got up and dropped his knee back down striking § 87(2)(b) in the back. § 87(2)(b) pulled out his cell phone and tried to take a picture of the scene.

§ 87(2)(b) was then arrested by an unidentified white male officer in plainclothes and an unidentified black male officer in plainclothes. § 87(2)(b) fled the scene and § 87(2)(b) was placed in a police van and transported with numerous juveniles to the 70th Precinct stationhouse. He was later released with a summons § 87(2)(b).

Witness: § 87(2)(b)

- § 87(2)(b) is an acquaintance of § 87(2)(b)

CCRB Testimony

§ 87(2)(b) provided a telephone statement on January 8, 2010 (encl. 10A). He declined to cooperate any further with the investigation § 87(2)(g)

On October 31, 2009, at approximately 7:00 p.m., § 87(2)(b) and a number of other youths were standing in front of a friend's building. § 87(2)(b) refused to identify any of the people by name, although he initially claimed to know all of them. He later claimed that he did not know them.

§ 87(2)(b) confirmed that § 87(2)(b) resisted being handcuffed by PO Gale and PO Chavez and tried to break free of them. § 87(2)(b) tried to pull § 87(2)(b) away from the officers. PO Gale then placed § 87(2)(b) up against the exterior of the building.

Eventually other officers arrived at the scene and one male, known to the CCRB as § 87(2)(b) ran up into the building to tell § 87(2)(b)'s parents what was happening. He was pulled out of the building by four uniformed officers § 87(2)(b) could not describe. They threw § 87(2)(b) to the ground and kicked him on the ground. § 87(2)(b) initially claimed that he saw § 87(2)(b) being pepper sprayed, but later admitted that he saw his eyes at a later point and learned what happened. He also initially claimed that he saw a girl being pushed to the ground and that another girl was hit in the face. § 87(2)(b) later admitted that he only saw one of the girls pushed to the ground by an unidentified chubby black male officer in plainclothes.

Witness: § 87(2)(b)

- § 87(2)(b) a § 87(2)(b) black male, is a friend of § 87(2)(b)

CCRB Testimony

§ 87(2)(b) provided a telephone statement on January 12, 2010 (encl. 11A). § 87(2)(g)

§ 87(2)(b) confirmed that § 87(2)(b) refused to be searched by PO Gale and PO Chavez and pushed one of the officers so he could run back to his house. One of the two officers told § 87(2)(b) "Back the fuck up." § 87(2)(b) and § 87(2)(b) were then arrested by PO Chavez and PO Gale.

§ 87(2)(b) was by a tree, on the sidewalk about 4-5 feet away from § 87(2)(b) and an unidentified female. § 87(2)(b) saw an unidentified black male officer push § 87(2)(b) against the gate. Another female, unknown to § 87(2)(b) but identified via investigation as § 87(2)(b) tried to put her hand up to the unidentified officer to hit him. The unidentified officer had his back to the § 87(2)(b). An unidentified white male officer in uniform approached and pushed § 87(2)(b) to the ground and then handcuffed her.

A male who § 87(2)(b) believed was § 87(2)(b)'s cousin came out of the building. § 87(2)(g)

§ 87(2)(b) exited the building and officers told him to go back inside. About 3-4 officers went into the building and two started punching § 87(2)(b) in his ribs or head. Unidentified uniformed officers then carried § 87(2)(b) outside. § 87(2)(b) did not see the officers hit the § 87(2)(b) outside. Unidentified officers then handcuffed § 87(2)(b).

Witness: § 87(2)(b)

- § 87(2)(b) a § 87(2)(b) Hispanic female, is the mother of § 87(2)(b)

CCRB Testimony

§ 87(2)(b) provided a telephone statement on November 10, 2009 (encl. 12A). On October 31, 2009, at approximately 7:00 p.m., § 87(2)(b)'s niece, § 87(2)(b) was called by § 87(2)(b) while they were on the way to a party. They returned home, and § 87(2)(b) saw a number of uniformed police officers standing in front of her home. She approached a uniformed black male officer who she identified via name and shield number as PO Ronald Archer. § 87(2)(b) was standing with officers in front of the door to her home. She asked PO Archer what was going on and why her son was arrested, and PO Archer pushed her to the ground, causing her to bruise her chin and scrape her knee. § 87(2)(b) got up and she asked him for his name and shield. He said that he didn't care what she did, and she recorded his name and shield number. § 87(2)(b) and his friend, § 87(2)(b) § 87(2)(b) were in handcuffs and placed in police vehicles.

Once § 87(2)(b) was taken from the scene, § 87(2)(b) went to the 70th Precinct stationhouse to file a complaint.

At an unspecified time, she spoke with § 87(2)(b) who was working at the store below her home. The store is owned by § 87(2)(b)'s mother in law, § 87(2)(b) only speaks Spanish. She said that officers were searching § 87(2)(b) for no reason. A number of § 87(2)(b)'s school friends were arrested, but they were all in handcuffs at the time that § 87(2)(b) arrived.

Witness: § 87(2)(b)

- § 87(2)(b) a § 87(2)(b) *Hispanic female, is the niece of* § 87(2)(b)

CCRB Testimony

§ 87(2)(b) provided a telephone statement on December 15, 2009 (encl. 13A) § 87(2)(g)

§ 87(2)(b) stated that she and § 87(2)(b) were ordered by PO Archer to move away and they remained where they were to ask what had happened. § 87(2)(b) was then pushed. PO Archer then grabbed § 87(2)(b) upper left arm, bruising it. PO Archer said, "Get the fuck off the corner!" § 87(2)(b) said she was going to call someone and called 911. PO Archer said that he did not care who she called and he held up his badge for her to see. PO Archer asked her, "You want me to put cuffs on you too?" § 87(2)(b), § 87(2)(b), and her grandmother then went to the local police precinct. § 87(2)(b) did not see anyone else getting arrested.

Between December 1, 2009, and December 28, 2009, § 87(2)(b) missed one scheduled interview without calling to explain her absence, and was called 5 times and sent two letters. As of the closing of this complaint, she has not contacted the CCRB.

Attempts to Contact Civilians

- Two appointments were arranged for § 87(2)(b) through his mother, § 87(2)(b). Both he and his mother missed appointments on November 16, 2009, and November 27, 2009. They did not call to explain their absences and as of the closing of this case, neither have contacted the CCRB.
- § 87(2)(b) and § 87(2)(b) were both called three times and sent two letters. Neither contacted the CCRB in response. As of the closing of this case, neither have contacted the CCRB.
- § 87(2)(b) was called 5 times between December 4, 2009, and December 22, 2009. Lexis Nexis and www.whitepages.com searches were performed between those dates and no address could be located for § 87(2)(b).
- § 87(2)(b), § 87(2)(b)'s friend who may have witnessed part of the incident, could not be contacted because § 87(2)(b) stated that he § 87(2)(b) did not have a phone. § 87(2)(g)

NYPD Statements:

Witness Officer: PO JAMES GALE

- PO Gale, a § 87(2)(b)-old white male, is § 87(2)(b) and weighs § 87(2)(b). He has brown hair and brown eyes.
- On October 31, 2009, PO Gale worked from 3:00 p.m. to 11:35 p.m. He was partnered with PO Chavez and they were assigned to sector J. They were in uniform and assigned to a marked vehicle.

Memo Book (encl. 14A-D)

PO Gale noted in his memo book that at 7:00 p.m., he requested additional units for multiple stopped individuals. At 7:07 p.m., PO Gale noted 7 under arrest at § 87(2)(b) and § 87(2)(b). At 7:15 p.m., he was present at the 70th Precinct stationhouse.

Criminal Complaint and Arrest Report (encl. 14E-I)

§ 87(2)(b) was arrested § 87(2)(b). The narratives of both reports state that § 87(2)(b) was acting disorderly, throwing punches, and bit PO Szczecinski on his right hand.

CCRB Testimony

PO Gale was interviewed at the CCRB on May 7, 2010 (encl. 14J-L). On October 31, 2009, at approximately 7:00 p.m., PO Gale and PO Chavez were on patrol and driving by and later stopped at a red light on the block when they observed a group of approximately 4-5 juvenile males hanging out in front of § 87(2)(b). They were acting disorderly and blocked pedestrians on the sidewalk. They were passing a black book bag around and PO Gale found their behavior suspicious.

The officers approached the group on foot and most of the members of the group entered the building. § 87(2)(b) remained alone on the sidewalk. PO Gale and PO Chavez tried to speak with § 87(2)(b) and ask what was going on. § 87(2)(b) complained loudly about the officers and pedestrians stopped to watch. Members of the juvenile group that had previously left returned to watch. A crowd of approximately 15-20 people began to form as juveniles from the building and people from a nearby store began to crowd around them. PO Gale and PO Chavez became concerned about the situation and believed that § 87(2)(b) was guilty of disorderly conduct. PO Gale and PO Chavez grabbed § 87(2)(b) and pressed him up against the front of the building in order to arrest him.

§ 87(2)(b) resisted the handcuffing. The officers tried to grab § 87(2)(b)'s hands, but he would not give up control of them and held them in front of his body. At this point, members of the crowd began to reach out and grab at the officers, touching their gun belts and other areas. Crowd members also grabbed at § 87(2)(b) and tried to pull him away from the officers. At this point, the officers called for additional units to assist them. PO Gale and PO Chavez had not yet been able to get § 87(2)(b) in handcuffs. They were eventually able to pull his arms behind his back and cuff him. PO Gale denied grabbing anyone from the crowd. PO Gale denied that § 87(2)(b) was frisked or searched prior to his arrest.

It took responding units approximately 2-3 minutes to arrive. During that time, they kept § 87(2)(b) against the building exterior while waiting for responding officers to clear the crowd. They each kept one arm on § 87(2)(b) while keeping the crowd back with the other arm. They were ordering the crowd to stay back. Additional units responded and cleared the crowd. PO Gale was not sure how the officers were able to do that and he could not recall which units did this. PO Gale and PO Chavez were able to walk § 87(2)(b) back to their vehicle and place him inside. They remained with their vehicle and did not participate in any of the 6 other arrests that were made at the location. They observed that more officers were arriving and that the crowd was dispersing. They remained by their car and waited for Sgt. Zeng to let them know that it was OK to leave.

PO Gale was aware of § 87(2)(b) being arrested § 87(2)(b) and he was shown the arrest photograph. PO Gale had no recollection of seeing § 87(2)(b) at the scene and first observed him back at the stationhouse. PO Gale had no idea how § 87(2)(b) sustained any

injuries to his eyes. PO Gale did not recall seeing anyone pepper sprayed at the scene. PO Gale was shown a photograph of § 87(2)(b) taken at the CCRB. PO Gale did not recognize § 87(2)(b). PO Gale had no recollection of seeing either of the two juvenile females arrested. PO Gale had no recollection of seeing any white male juveniles being arrested. PO Gale did not observe any individuals other than § 87(2)(b) being arrested and he did not observe any civilians on the ground at the scene. PO Gale was not aware of any Lieutenants being at the scene. PO Gale was not aware of any civilians being arrested for recording the incident. PO Gale was informed that § 87(2)(b) at § 87(2)(b) was much older than the other arrestees and asked if he recalled seeing § 87(2)(b) at the scene. PO Gale did not. PO Gale had no recollection of any officers punching or kicking any civilians. PO Gale did not recall seeing any officers enter any of the nearby buildings.

PO Gale was aware that PO Szczecinski was injured during the incident. At the stationhouse, PO Gale was informed by PO Szczecinski that he was bitten on the hand while trying to place § 87(2)(b) under arrest.

PO Gale and PO Chavez determined that since the 5 additional § 87(2)(b) arrests were made in response to their job, they split up the job of issuing those summonses. PO Gale stated that he must have been told by other officers what these people did to be guilty of § 87(2)(b), but he could not recall who any of these other officers were in particular. At the stationhouse, PO Gale saw the black book bag at the stationhouse as one of the juvenile's personal property. The bag was checked in front of the desk and it was determined that it contained no contraband.

PO Gale did not recall any anti-crime members responding to the scene. He did not recall Lt. Ferber responding.

Witness Officer: PO MARCO CHAVEZ

- PO Chavez, a § 87(2)(b)-old Hispanic male, is § 87(2)(b) and weighs § 87(2)(b). He has brown hair and brown eyes.
- On October 31, 2009, PO Chavez worked from 4:00 p.m. to 12:00 a.m. They were uniformed and assigned to a marked vehicle.

Memo Book (encl. 15A-C)

PO Chavez noted in his memo book that at 7:00 p.m. requested additional units for multiple stop. At 7:07 p.m., PO Chavez noted 2 juveniles and 5 adults under arrest. At 7:15 p.m., PO Chavez noted that the juveniles were released to their parents while four criminal summonses were issued.

CCRB Testimony

PO Marco Chavez was interviewed at the CCRB on May 3, 2010 (encl. 15D-E). § 87(2)(g)

After PO Chavez and PO Gale arrested § 87(2)(b) the rest of the people in the group he was with began to push the officers from behind so PO Chavez called for additional units. When the additional units arrived, PO Chavez and PO Gale remained with § 87(2)(b). Subsequently, everyone was placed under arrest. PO Chavez did not recall any pepper spray being discharged and did not witness two juvenile females being placed under arrest. He did not recall anyone being placed on the ground, struck with fists or having hands placed around their necks. PO Chavez did not recognize § 87(2)(b) as being part of the incident when shown his arrest photograph. PO Chavez recalls EMS coming to the stationhouse, but he did not recall anyone having their eyes washed out.

PO Chavez recalled that § 87(2)(b) was issued a summons during the incident. § 87(2)(b) was verbally attempting to interfere with the arrest. PO Chavez ordered § 87(2)(b) to move back when he was standing behind the officers and he did not obey. PO Chavez did not witness § 87(2)(b) being placed under arrest.

Subject Officer: PO MICHAEL SZCZECINSKI

- PO Szczecinski, a § 87(2)(b)-old white male, is § 87(2)(b) and weighs § 87(2)(b). He has blond hair and blue eyes.
- On October 31, 2009, PO Szczecinski worked from 6:00 p.m. to 2:35 a.m. of the following day. He was assigned to Impact and with PO Rios. They were in uniform and assigned to a marked vehicle.

Memo Book (encl. 16A-B)

PO Szczecinski did not have anything specific regarding the incident noted in his memo book. He noted in his memo book that he was at § 87(2)(b) at § 87(2)(b). He was out of work for a line of duty injury from § 87(2)(b) until § 87(2)(b).

AIDED Report (encl. 16C-G)

PO Szczecinski was bitten while trying to apprehend a suspect. He was removed to § 87(2)(b).

CCRB Testimony

PO Szczecinski was interviewed at the CCRB on June 11, 2010 (encl. 16H-I). On October 31, 2009, at approximately 7:00 p.m., PO Szczecinski and PO Rios responded to a call for assistance. There were numerous officers on the scene, both inside the building and on the street. PO Szczecinski witnessed several juveniles striking officers with their fists. He also witnessed several plain clothes officers chasing a number of black males into a nearby building. After proceeding two or three feet into the building, PO Szczecinski was in a narrow space with a stairwell. He recalled that one of the officers was PO “Clark”, but he did not specify whether this was PO Leonard Clarke or PO Robert Clark. The officers attempted to pull multiple males out of the building. He did not recall how many were removed. While inside the building, § 87(2)(b) struck PO Szczecinski in the face with an elbow and bit his right hand between his middle and ring finger, but did not break the skin. § 87(2)(b) was flailing his arms and swinging punches at other officers crowded around. PO Szczecinski tried to grab § 87(2)(b)'s arms and § 87(2)(b) swung punches at him. PO Szczecinski blocked these blows. PO Szczecinski punched § 87(2)(b) once in the face once and then helped remove him from the building with other officers. PO Szczecinski did not recall how § 87(2)(b) was brought out of the building. Outside, § 87(2)(b) was brought down to the ground and PO Szczecinski was holding his ankles to prevent him from kicking. There were still officers inside the building at this point. PO Szczecinski did not recall any pepper spray being discharged at any time during the incident.

PO Szczecinski did not recall any juvenile females or white males being arrested or anyone video-recording the incident with a cell phone or other device. PO Szczecinski did not recall seeing any officers place their hands on any of the juveniles' throats or anyone complaining of being choked. Following the incident, PO Szczecinski received treatment at § 87(2)(b) for a contusion to the face, and had the bite examined. PO Szczecinski also sustained a sprain in his right hand from the incident. He was out line of duty from § 87(2)(b), until § 87(2)(b).

Witness Officer: PO MICHAEL RIOS

- PO Rios, a § 87(2)(b) Hispanic male, is § 87(2)(b) and weighs § 87(2)(b). He has brown hair and brown eyes.
- On October 31, 2009, PO Rios worked from 6:00 p.m. to 2:35 a.m. the following day. He was assigned to an impact vehicle and he was partnered with PO Szczecinski. They were in uniform and assigned to a marked vehicle.

Memo Book (encl. 17A-C)

PO Rios noted in his memo book that at 7:10 p.m., they responded to a 10-85 at § 87(2)(b) and § 87(2)(b). At 8:40 p.m., they were present at § 87(2)(b) for PO Szczecinski's injury.

CCRB Testimony

PO Rios was interviewed at the CCRB on June 9, 2010 (encl. 17D-E). On October 31, 2009, at approximately 7:10 p.m., PO Rios and PO Szczecinski responded to a 10-85 placed by officers at § 87(2)(b) and § 87(2)(b). When they arrived at the location, they observed a large crowd gathered on the street a few doors down from the intersection of § 87(2)(b) and § 87(2)(b). There were approximately 20-30 civilians gathered. Interspersed among them were numerous officers providing crowd control who were all over the location. PO Rios and PO Szczecinski jogged over to the crowd. They observed individuals being placed into handcuffs. Other individuals were trying to interfere in these arrests. PO Rios and another officer he did not know who, had their backs to some officers who were making arrests. He recalled that he definitely observed one arrest and this was where he helped form a perimeter. He did not witness the handcuffing and merely observed that the individual was already in handcuffs. He believed that other arrests were occurring elsewhere. He had no clear recollection of the circumstances of the arrest that took place near him. He did not know which officers were involved. He could not recall whether this individual was standing or on the ground or whether they resisted in any way.

PO Rios and the officer next to him focused their attention towards individuals who were gathered around the officers making arrest. PO Rios did not know where PO Szczecinski went when they moved towards the crowd. PO Rios did not see PO Szczecinski again until the incident concluded. PO Rios did not participate in arresting anyone. He did not make physical contact with anyone. He had no clear recollection of the arrests he witnessed. He stated that there were so many people and it was so crowded that he could merely tell that people were being arrested but did not watch those arrests occur. Those individuals appeared to be under control so he did not pay much attention to the arrests. He did not see people coming in and out of the buildings where the incident was occurring. PO Rios was shown the arrest photo of § 87(2)(b) and he did not recognize him. PO Rios could not recall whether the individuals being arrested were juveniles or adults. He did not recall seeing any females being arrested. He was not aware of anyone being pepper sprayed, punched, or brought to the ground by officers. He did not recall seeing any plainclothes officers at the scene. He believed that he did see some civilians recording the incident on cell phones, but he did not see any of those individuals being arrested.

Eventually, bosses arrived and declared that the situation was under control. All of the officers at the scene then congregated together by the cars. He met up with PO Szczecinski there. He also saw PO Gale present at that time. PO Szczecinski explained that he had sprained or broken one of his hands. He did not explain how it had happened. PO Rios went with him to § 87(2)(b) for the duration of his treatment. They did not return to the stationhouse until 10:50 p.m.

Witness Officer: SGT. GUANG ZENG

- Sgt. Zeng, a § 87(2)(b)-old Asian male, is § 87(2)(b) and weighs § 87(2)(b). He has black hair and brown eyes.
- On October 31, 2010, Sgt. Zeng worked from 2:50 p.m. to 11:47 p.m. He was the patrol supervisor and was partnered with PO Guerrero. He was in uniform and assigned to a marked vehicle.

Memo Book (encl. 18A-B)

He noted in his memo book that at 7:10 p.m., he responded to a 10-85 at § 87(2)(b) and § 87(2)(b). At 7:15 p.m., he called IAB.

CCRB Testimony

Sgt. Zeng was interviewed at the CCRB on June 16, 2010 (encl. 18C-D). On October 31, 2010, at 7:10 p.m., Sgt. Zeng and his operator responded to a call for assistance at § 87(2)(b) and § 87(2)(b). Once he arrived, there were many people gathered on the street. He was not the first unit to respond. He located PO Gale and PO Chavez outside on the street and they informed him that there was a disorderly group of people in the street that were passing a school bag back and forth. The officers tried to stop the group which caused the group to crowd around them. They called a for assistance in response. Everyone who was arrested during the incident had already been handcuffed and placed in a van. Sgt. Zeng did not participate in arresting anyone and he did not witness anyone being handcuffed. Sgt. Zeng could not recall whether any plainclothes officers were present at the scene. Sgt. Zeng did not check on the condition of the arrested individuals inside of the van. Sgt. Zeng did not speak with officers other than PO Gale and PO Chavez. Sgt. Zeng was not aware of any officers entering any of the buildings in front of which this incident occurred. He was not aware of any OC spray being used during the incident. He was shown the arrest photograph of § 87(2)(b) from the incident. Sgt. Zeng did not recognize him. He never saw any officers using force against civilians at the scene. Sgt. Zeng was not aware of any officers being injured at the scene. He was not aware of other supervisors being present at the scene.

Witness Officer: PO DOMENIC CAPPIELLO

- PO Cappiello, a § 87(2)(b)-old white male, is § 87(2)(b) and weighs § 87(2)(b). He has brown hair and green eyes.
- On October 31, 2010, PO Cappiello worked from 3:00 p.m. to 11:35 p.m. He was partnered with PO Solis and they were assigned to sectors E and F. They were in uniform and assigned to a marked car.

Memo Book (encl. 19A-D)

PO Cappiello noted in his memo book that at 6:44 p.m., he responded to an “other crime” in progress. At 6:50 p.m., he marked to job as “gone on arrival.” At 7:05 p.m. he responded to a call of a possible crime at § 87(2)(b).

CCRB Testimony

PO Cappiello was interviewed at the CCRB on October 5, 2010 (encl. 19E-F). PO Cappiello initially had no recollection of the incident. After being provided with details of the incident, he did recall that he responded to the location to provide crowd control and that PO Szczecinski broke his hand during the incident. He did not have a specific recollection of provided crowd control. He did not believe that he or PO Solis participated in arresting anyone or using any force against anyone. He did not recall seeing any officers effecting arrests or using force against any civilians. He did not recall any officers discharging pepper spray. He did not

have any recollection of PO Clarke or Sgt. Durante being present. He did not recall any officers entering any buildings during the incident.

Witness Officer: PO LUKASZ SOLIS

- *PO Solis, a § 87(2)(b) old white male, is § 87(2)(b) and weighs § 87(2)(b). He has blond hair and blue eyes.*
- *On October 31, 2010, PO Solis worked from 3:00 p.m. to 11:35 p.m. He was partnered with PO Cappiello and they were assigned to sectors E and F. They were in uniform and assigned to a marked car.*

Memo Book (encl. 20A-D)

PO Solis did not make any memo book entries regarding this incident.

CCRB Testimony

PO Lukasz Solis was interviewed at the CCRB on October 13, 2010 (encl. 20E-F). On October 31, 2010, at approximately 7:00 p.m., PO Solis and PO Cappiello responded to the incident location for a 10-85 or a 10-13. PO Solis did not recall what occurred at the location or what actions he performed at the location. He was provided with details relating to the events preceding PO Gale and PO Chavez's call for assistance. He was informed PO Szczecinski was injured and multiple juveniles were arrested by officers performing crowd control at the location. This did not jog PO Solis' memory and he could not recall what he did at the scene or what was occurring when he arrived. He was shown the photographs of § 87(2)(b) and § 87(2)(b) who he did not recognize. PO Solis had no recollection of any individuals being pepper sprayed at the scene. He had no recollection of seeing any civilians being brought to the ground or witnessing any physical altercations between officers and civilians. He had no recollection of any officers entering any buildings in front of which the incident occurred. He did not recall entering any buildings at the location.

Witness Officer: PO LEONARD CLARKE

- *PO Clarke, a § 87(2)(b) old black male, is § 87(2)(b) and weighs § 87(2)(b). He has black hair and brown eyes.*
- *He could not recall the exact tour he worked on October 31, 2010. He was assigned to the conditions unit. He was assigned to plainclothes and partnered with PO Lessey and PO Laveglia. They were assigned to an unmarked vehicle.*

Memo Book (encl. 21A-B)

PO Clarke did not bring his memo book to the CCRB.

CCRB Testimony

PO Leonard Clarke was interviewed at the CCRB on October 14, 2010 (encl. 21C-D). On October 31, 2010, at approximately 8:00 p.m., PO Clarke heard the 10-85 radio communication from the incident location. PO Clarke and his partners responded to the location. By the time they arrived, there were many police officers in the area and they immediately heard a radio communication for no further units. PO Clarke and his partners then immediately returned to their vehicle and resumed patrol. They took no police action at the incident location. PO Clarke was not able to see any civilians being arrested at the location. He did not witness any officers using force against any civilians and he had no physical contact with any civilians at the location. He was shown the arrest photograph of § 87(2)(b) who he did not recognize.

Medical Records (encl. 22A-U)

§ 87(2)(a) PBH §18(6)

§ 87(2)(b)'s medical records could not be released with the signature of her father. The hospital required her mother's signature. When later contacted, § 87(2)(b) declined further participation in the investigation.

NYPD Documents

SPRINT Report (encl. 23A-D)

At 7:15 p.m., sector J (PO Gale and PO Chavez) requested an additional unit at § 87(2)(b) and § 87(2)(b) for a disorderly group. At 7:16 p.m., sector E (PO Solis and PO Cappiello) arrived at the location. At 7:17 p.m., two additional units were requested. At 7:18 p.m., the patrol supervisor (Sgt. Zeng) arrived at the location. At 7:18 p.m., sector G (PO Collyer and PO Callindo) arrived. At 7:19: p.m., it was communicated at no further units were required. At 7:23 p.m., sector C (not noted on the roll call) arrived. At 7:24 p.m. sector G reported that they were transporting one individual, but at 7:15 p.m., the spike van reported that it was transporting multiple arrested individuals. At 7:25 p.m., Sgt. Zeng reported that there were no injuries and all officers were accounted for. At 7:26 p.m., a sergeant was requested to call IAB. At 7:27 p.m., a female caller requested EMS at the location because an officer assaulted her. At 7:28 p.m., EMS was requested to the 70th Precinct stationhouse for injured prisoners. At 7:36 p.m., sector J (PO Gale and PO Chavez) reported 7 under arrest as of 7:25 p.m.

70th Precinct Roll Call (encl. 23E-O)

PO Chavez and PO Gale were assigned to sector J. PO Solis and PO Cappiello were assigned to sectors E and F. PO Collyer and PO Callindo were assigned to sectors G and H. Sgt. Zeng was the patrol supervisor. PO Szczecinski and PO Rios were among 27 officers assigned to impact in the 70th Precinct. PO Clarke and PO Clark were among the 18 officers and sergeants assigned to conditions and anti-crime teams.

Command Log (encl. 23P-Q)

PO Gale logged the arrests of § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), who were all charged with § 87(2)(b) and released from the stationhouse with summonses. PO Gale also logged the arrest of § 87(2)(b)

Medical Treatment of Prisoner Report (encl. 23R)

A medical treatment of prisoner report was filed for § 87(2)(b). The nature of his injury was "eye swell." The report noted that he had swelling and small lacerations to his face.

Line of Duty Injury Report – PO Michael Szczecinski (encl. 27L)

The line of duty injury report prepared for PO Szczecinski could not be located by the 70th Precinct. However, his memo book entries between § 87(2)(b) and § 87(2)(b) confirm that he was out of work on a line of duty injury between those dates.

Leave of Absence Report – PO Robert Clark (encl. 23S)

PO Robert Clark ended his tour on October 31, 2009 at 1:35 p.m. § 87(2)(b)

Summons/Arrest for Incident and Disposition (encl. 24A-F)

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings (encl. 24ZZ)

- § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) have not filed a Notice of Claim with the City of New York as of December 16, 2010 with regard to the incident.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians' CCRB Histories (encl. 1C-L)

- This is the first CCRB complaint filed by § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b)
- § 87(2)(b) has filed the following CCRB complaints:

- § 87(2)(b)

Subject Officers' CCRB Histories (encl. 1A-B)

- PO Szczecinski has been a member of the service for 4 years and there are no substantiated CCRB allegations against him.
- PO Archer has been a member of service for 16 years and there are no substantiated CCRB allegations against him.

Conclusion

Identification of Subject Officers

The only interviewed officer who admitted to using physical force against § 87(2)(b) was PO Szczecinski. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b), § 87(2)(b), and § 87(2)(b) alleged that multiple unidentified uniformed officers struck them with fists on various parts of their bodies. § 87(2)(g)

None of the officers interviewed, other than PO Szczecinski, admitted to using force against the three males. § 87(2)(g)

All three males also alleged that a black male officer in plainclothes used force against them. § 87(2)(b) additionally alleged that this officer used a choke hole against him and § 87(2)(b) and § 87(2)(b) alleged that an officer matching that description pushed them. It should be noted, however, that § 87(2)(b) claimed she saw a uniformed white male officer push § 87(2)(b) not a black male officer in plainclothes.

Photographic identification procedures were conducted with § 87(2)(b), § 87(2)(b), and § 87(2)(b) in order to identify the black male officer in plainclothes. They were shown the photographs of all the black male officers assigned to plainclothes units in the 70th Precinct at the time of the incident. § 87(2)(b) and § 87(2)(b) did not cooperate with the investigation's efforts to conduct the procedure. § 87(2)(b) identified PO Leonard Clarke, but neither § 87(2)(b) nor § 87(2)(b) identified any of the officers. PO Clarke admitted responding to the incident, but denied taking any police action at the scene or having any physical contact with any civilians.

§ 87(2)(g)

As mentioned above, § 87(2)(b) alleged that a uniformed white male officer in a white shirt pepper sprayed him. He had previously alleged that this officer punched him in the face, but it was determined that this officer was actually PO Szczecinski. No commands other than the 70th Precinct responded to the incident according to the SPRINT report. § 87(2)(b) and § 87(2)(b) were shown photographic arrays with the one lieutenant and one captain working in the 70th Precinct at the time of the incident. § 87(2)(b) claimed to recognize Cpt. Venice, but did not identify him as the officer who discharged pepper spray at him and claimed that Cpt. Venice was wearing a blue uniform at the time of the incident, an impossibility. § 87(2)(b) did not recognize Cpt. Venice. § 87(2)(g)

When filing her complaint, § 87(2)(b) identified PO Archer by his shield number and name. When they provided telephone statements, both § 87(2)(b) and § 87(2)(b) confirmed this information. § 87(2)(g)

Allegations Not Pleaded

§ 87(2)(b) alleged that an officer used profanity in speaking with § 87(2)(b). § 87(2)(b) did not mention this and neither did any of the other civilians. § 87(2)(g) (b)

§ 87(2)(b) claimed that an unidentified white male officer's hand grazed her face and did not cause an injury. § 87(2)(g)

In her telephone statement, § 87(2)(b) alleged that PO Archer used profanity in speaking with § 87(2)(b) and threatened to arrest § 87(2)(b). § 87(2)(g)

Investigative Findings and Recommendations

Allegation A: PO Michael Szczecinski used physical force against § 87(2)(b).

§ 87(2)(b) alleged that a uniformed white male officer in a white shirt punched him in the face. PO Szczecinski, a uniformed officer wearing a blue shirt at the time of the incident, admitted to punching § 87(2)(b) in the face inside the stairwell of § 87(2)(b). PO Szczecinski stated that he punched § 87(2)(b) in the face after he was struck in the face by an elbow being flailed about and after § 87(2)(b) bit his hand. PO Szczecinski claimed that he punched § 87(2)(b) only once and that after he punched § 87(2)(b), § 87(2)(b) was removed from the building and arrested. § 87(2)(b) had denied resisting arrest and biting any officers. No civilian witnesses claimed that § 87(2)(b) had bitten PO Szczecinski or corroborated the officer's claims that § 87(2)(b) fought with officers. None of the interviewed officers stated that they witnessed the struggle between PO Szczecinski and § 87(2)(b).

§ 87(2)(g)

Allegation B: Officers used physical force against § 87(2)(b).

§ 87(2)(b), and § 87(2)(b)

Allegation C: An officer used a chokehold against § 87(2)(b).

Allegation D: An officer used pepper spray against § 87(2)(b).

Allegation E: An officer used physical force against § 87(2)(b) and § 87(2)(b).

§ 87(2)(g)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Allegation F: PO Ronald Archer used physical force against § 87(2)(b) [REDACTED]
§ 87(2)(b) [REDACTED] alleged that PO Archer pushed § 87(2)(b) [REDACTED] § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date